



DECISION

Complaint No. : POS/6983/2025/Adv-M

Name and address of the complainant : Mr. Muhammad Yaqoob s/o Abdul Majeed Chinstaz, r/o House No. 24-SC, Hari Odhbani Lohana Building, near Nigar Cinema, Godhra Street, Karachi.

Name of the Agency Complained against : Karachi Metropolitan Corporation

Name & Designation of Investigating Officer : Mir Hussain Ali Advisor-M

Vetted by :

Subject : REQUEST FOR REMOVAL OF ENCROACHMENTS FROM ROAD SIDE

Complaint:

Mr. Muhammad Yaqoob, filed his complaint dated 29.9.2025, against the officials of Anti-Encroachment Department, KMC for not taking effective action against a hotel keeper, who not only encroaching the foot path, but also threatening him. He therefore requested this Institution to intervene in the matter.

Proceedings

2. The complaint admitted under Section-10 of the Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991 was referred to the Senior Director, Anti-Encroachment, Karachi Metropolitan Corporation for a report. In response, on 20.10.2025 the Deputy Director, Anti- Encroachment, Eidgah Division, Karachi Metropolitan Corporation vide his letter No. KMC/DD/AE/E.D/139/2025 dated 20.10.2025 stated that as per orders of the Ombudsman Sindh the encroachment has been removed on 17.10.2025. He enclosed photographs as evidence.

3. The Investigating Officer visited the site in question and observed that the person who is running a small hotel in his shop keeps on overstepping onto the footpath in a minor way. From the contents of the complaint and subsequent letters from the complainant it seems to be a personal tussle between the two.

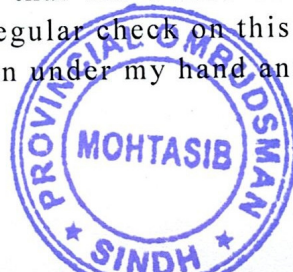
Findings:

4. The above proceedings indicate that encroachment has been removed, but in a subsequent visit of the Investigating Officer, it appears that the hotel keeper keeps on occupying the foot path.

Decision:

5. In view of the above proceedings it is clear that though the encroachments were removed, the person complained against keeps on occupying the footpath. Hence, under section 11 of the Establishment of the Office of Ombudsman for the Province of Sindh Act 1991, I hereby direct the Metropolitan Commissioner Karachi Metropolitan Corporation; the Deputy Commissioner, Karachi South; and the Senior Superintendent of Police South to ensure that the owner of the hotel does not encroach the site, by maintaining a regular check on this issue.

“Given under my hand and seal of office”



Sd /-

(Muhammad Sohail Rajput)

Sitara-e-Imtiaz, PAS
OMBUDSMAN SINDH

Karachi, dated 02, December, 2025